

14.	25CV0550	TRAVIS TEXER ET AL VS. GARY ROMERO ET AL
MOTION TO COMPEL		

Defendants, Folsom Hall Investors, Inc. dba Keller Williams Realty – Folsom, a California Corporation, and Ricky O’Neal (“Defendants”), move to compel and request monetary sanctions against Plaintiffs, Travis Texer and Michelle Texer (“Plaintiffs”). No opposition has been filed.

On March 31, 2026, Defendants served Requests for Production of Documents, Set One to Plaintiff Michelle Texer and Requests for Production of Documents, Set One to Plaintiff Travis Texer (collectively the “Discovery Requests”) on Plaintiffs through their counsel. After the statutory deadline passed, Defendants’ counsel met and conferred with Plaintiffs’ counsel and agreed that Plaintiffs would provide objection-free responses.

On May 28, 2026, Plaintiffs provided responses to the Requests for Production of Documents; however, the response contained “General Objections,” and indicated that they would comply with the requests to produce all documents “to which no objection is being made.” Included with the document responses was “TEXER0095 through TEXER0108” which was extensively redacted.

Defendants seek the following:

1. Declare that Plaintiffs have waived all objections to the subject discovery requests;
2. Order Plaintiffs to provide amended responses that omit the “General Objections” and omit the qualification that responsive documents will be produced if “no objection is being made”;
3. Order Plaintiffs to produce any responsive documents that were withheld based on the General Objections and qualification addressed in number 2;
4. Order Plaintiffs to produce completely unredacted copies of TEXER0095 through TEXER0108; and
5. Order Plaintiffs’ attorney, Kevin James, and his firm, Becker, Nelson, Center and James, jointly and severally, be ordered to pay monetary sanctions in the amount of \$735.00 to \$1,185.00.

If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product. Code of Civil Procedure § 2031.300(a).

Misuses of the discovery process include making, without substantial justification, an unmeritorious objection to discovery. Code of Civil Procedure § 2023.010.

If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the court shall impose a monetary sanction against any party,

person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Code of Civil Procedure § 2031.300(c).

The Court finds that Plaintiffs failed to timely serve responses to the Discovery Requests and therefore waived all objections. Plaintiffs are ordered to provide amended responses that omit all objections, whether general or specific.

As Plaintiffs waived all objections, including one based on privilege or protection for work product, the redaction of TEXER0095 through TEXER0108 was improper. Plaintiffs are ordered to provide an unredacted copy of TEXER0095 through TEXER0108 and all responsive documents that were withheld based on objections. Defendants' request for sanctions in the amount of \$787.50 is granted.

TENTATIVE RULING #14:

DEFENDANTS' MOTION TO COMPEL IS GRANTED AS REQUESTED. DEFENDANTS' REQUEST FOR SANCTIONS IS GRANTED IN THE AMOUNT OF \$787.50.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.